

20CV03676 Abelardo Garcia vs Point Sal Packing Inc et al

County: santa-barbara

Division: Unlimited Other Employment (15)

Department: 2 SM-Cook

Hearing date: 2026-06-02

Motion: 1. Motion to Strike x3, 2. Motion for Class Certification

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/20cv03676>

Source SHA-256: 7cda9fad654b62ebd20b33ea16c5b0c86e98868917724d496d9fb8dc8e26d55f

Tentative Ruling: Abelardo Garcia vs Point Sal Packing Inc et al

Case Number

20CV03676

Case Type

Unlimited Other Employment (15)

Hearing Date / Time

Tue, 06/02/2026 - 08:30

Nature of Proceedings

1. Motion to Strike x3, 2. Motion for Class Certification

Tentative Ruling

Because of the voluminous nature of this motion, as well as the arguably duplicative challenges to evidence (see Evid. Code section. 353), the court intends to continue the matter to June 16, 2026 at 8:30 a.m. The court notes that the Declaration of Eric Tims filed on April 1, 2026 omitted Exhibit 4, which was reportedly the declaration of Abelardo Garcia in Support of Motion for Class Certification, with a certified translator declaration. (See Detrick v. Shimada (2026) 120 Cal.App.5th 170.) Plaintiff is instructed to file Exhibit 4 as soon as possible.

Appearances are required on June 2, 2026, to discuss the continuance and the November 4, 2026, expiration of the five-year deadline.

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

US